

STATE OF IOWA
BEFORE THE IOWA BOARD OF PSYCHOLOGY EXAMINERS

IN THE MATTER OF THE	)	
APPLICATION FOR LICENSURE	)	DIA NO. 00DPHPS005
OF:	)	
	)	
	)	FINDINGS OF FACT,
DENNIS M. DOREN	)	CONCLUSIONS OF LAW,
	)	DECISION AND ORDER
Applicant	)	

On June 19, 2000, the Iowa Board of Psychology Examiners (Board) notified Dennis M. Doren, Ph.D., (Applicant) that they would not grant his request for a waiver from the licensure requirement of passing the Examination for Professional Practice in Psychology (EPPP). The applicant appealed, and a notice of hearing was issued.

The hearing was held on April 20, 2001 at 1:00 p.m. in the fifth floor conference room, Lucas State Office Building, Des Moines, Iowa. The following members of the Board were present for the hearing: Scott Shafer, Ph.D., Chairperson; Jacob Sines, Ph.D.; Daniel Courtney, Ph.D.; Ana Lopez-Dawson, Ph.D.; and Connie Russell-Schmett and Ruth Daggett, Public Members. Shauna Shields, Assistant Attorney General, appeared for the state. The Applicant appeared pro se by telephone. Margaret LaMarche, Administrative Law Judge from the Iowa Department of Inspections and Appeals, assisted the Board in conducting the hearing. The hearing was tape recorded and was recorded by a certified court reporter.

After hearing the testimony and examining the exhibits, the Board convened in closed executive session, pursuant to Iowa Code section 21.5(1)(f)(2001) to deliberate. The administrative law judge was directed to prepare the Board's decision, in conformance with their deliberations.

THE RECORD

The record includes the Notice of Hearing, the testimony of the witness, and the parties' stipulated exhibits A-AA.

FINDINGS OF FACT

1. The Applicant filed an application for a license to practice psychology in Iowa on February 11, 2000. Iowa law requires applicants for licensure to practice psychology to successfully complete an examination administered by the Board. The Board

administers the national Examination for Professional Practice in Psychology (EPPP). In the cover letter to his application, the Applicant requested that the Board waive the examination requirement. (Testimony of Applicant; Exhibits A, B; Iowa code section 154B.6(3); 645 IAC 240.8; 240.10(2))

2. The Applicant earned his Ph.D. from an accredited program in Psychology at Florida State University in December 1983. In February 1984, the Applicant was issued license #1085 to practice psychology in the state of Wisconsin. Wisconsin did not require the EPPP for licensure in 1984. At the time that the Applicant was licensed in Wisconsin, he successfully completed a written ethics and jurisprudence examination and an oral examination in his anticipated areas of practice. The Applicant has held a license to practice psychology in Wisconsin for seventeen consecutive years. His license has not been disciplined in Wisconsin. (Testimony of Applicant; Exhibits C, L, M, N)

3. Iowa and Wisconsin currently have substantially equivalent requirements for licensure. Both states require applicants to have doctoral degrees in psychology, to serve internships and complete post doctoral training with supervision, to pass the EPPP with a minimum score of 70%, and to pass an oral exam. In addition, Wisconsin requires applicants to pass a jurisprudence exam. (Testimony of Applicant; Exhibits W-Z)

4. The Applicant has substantial training and experience in the area of sex offender consultations, evaluations, and court testimony, and has published numerous articles. (Testimony of Applicant; Exhibits A, H, I, J)

5. On June 16, 2000, the Applicant's request for waiver of the examination was denied by the Board, but he was granted a Limited Permit To Practice Psychology in Iowa. The Applicant is entitled to renew the limited permit for an additional 12 month period. (Testimony of Applicant; Exhibit P, O; 645 IAC 240.4(9))

6. On January 16, 2001, the Applicant was granted Certification of Professional Qualification in Psychology (CPQ) from the Association of State and Provincial Psychology Boards (ASPPB), which is the same organization that constructs and administers the Examination of Professional Practice In Psychology (EPPP). Issuance of the CPQ is based upon standards established by the ASPPB Certification Committee and endorsed by the ASPPB Board of Directors. The CPQ is a means by which an individual can demonstrate to a licensing board that he or she has met ASPPB recommended standards for licensure. The ASPPB encourages its member boards to accept the CPQ as evidence that an applicant for

licensure has met the educational, supervised experience, and examination requirements for licensure. (Testimony of Applicant; Exhibit U)

CONCLUSIONS OF LAW

Iowa Code section 154B.6(2) provides that an applicant for licensure must have passed an examination administered by the board to assure the applicant's professional competence. However, the legislature has provided the following waiver provision:

The examinations required in this section may, at the discretion of the board, be waived for holders by examination of licenses or certificates from states whose requirements are substantially equivalent to those of this chapter, or for holders by examination of specialty diplomas from the American board of professional psychology.

Iowa Code section 154B.6(3) (1999)

645 IAC 240.7 provides that persons applying for licensing under the waiver provisions of the law must so specify in their applications. Determination of psychological practice will be based on the professional experience requirements in rule 240.6

The Applicant has specifically requested waiver of the national examination, the EPPP. In evaluating the Applicant's request for waiver of the written examination, the Board must initially determine whether the applicant holds a license in another state, whether that license was obtained by examination, and whether that state's licensure requirements are substantially equivalent to the requirements in Iowa Code chapter 154B. If these criteria are all met, then the Board must determine whether a waiver is appropriate, under the circumstances presented by this particular applicant.

The preponderance of the evidence established that the Applicant does hold a license to practice psychology in the state of Wisconsin, which he obtained by written and oral examination. In addition, the preponderance of the evidence established that Wisconsin's licensure requirements are currently substantially equivalent to the licensure requirements in the state of Iowa.

Since the threshold criteria for waiver have been met, the Board has the authority to consider the particular facts and circumstance presented by this applicant in order to determine whether it is an appropriate exercise of discretion to grant his request for waiver.

Numerous factors bear on this decision. It is essential that the Applicant has an established record of ethical and professional practice without disciplinary actions in the state of licensure. It is important that the Applicant has substantial training and professional experience in the area that he intends to practice, i.e. sex offender civil commitment assessments. In addition, the Applicant has practiced in Iowa under a limited permit for the past year. Finally, since the Board's initial refusal to grant the waiver of written examination, the Applicant has been granted the Certification of Professional Qualification in Psychology (CPQ) from the Association of State and Provincial Psychology Boards (ASPPB). Based on the totality of the circumstances presented by this applicant, the Board has determined that it is appropriate and consistent with the public interest to grant his request for waiver of the written examination (EPPP).

DECISION AND ORDER

IT IS THEREFORE ORDERED, that the request of Dennis Doren, Ph.D., for a waiver of the written examination requirement, pursuant to Iowa Code section 154B.6(3)(1999), is GRANTED. The remainder of his application for licensure will be processed by the Board in accordance with established procedures.

Dated this 17th day of May, 2001.



Scott W. Shafer, Ph.D.

Chairperson

Iowa Board of Psychology Examiners

cc: Shauna Shields
Assistant Attorney General

Pursuant to 645 IAC 11.29, any appeal to the district court from disciplinary action of the board or denial of license shall be taken within 30 days from the issuance of the decision by the board. It is not necessary to request a rehearing before the board to appeal to the district court.